

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/16/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0002864

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: RON RODRIGUES

and

RESPONDENT: NIKA WYNNYK

NATURE OF PROCEEDINGS: REQUEST FOR ORDER– CHILD CUSTODY/VISITATION

RULING

Procedural History

This matter is before the Court on Respondent/Mother's May 27, 2026, Request for Order (RFO) for custody and visitation orders regarding the parties' son, Jackson (DOB: 06/04/2021). Petitioner /Father filed a responsive declaration on July 2, 2026.

Mother requests Joint legal and physical custody, with a 2/2/3 visitation schedule unless Father hasn't found a place to live, then she would request sole legal and sole physical custody with visitation to Father.

Father requests joint legal and sole physical custody amongst other custody and visitation requests, including Mother not consume alcohol or controlled substances 24 hours prior to or during her parenting time, that Bochy the beagle dog be shared equally in line with parenting time with Jackson, guideline child support and attorney fees.

Both parties were interviewed together by Family Court Services (FCS) as well as L. Hairston, CFS Investigating Worker. FCS issued its report and recommendations on July 14, 2026. Neither party submitted a statement of agreement/disagreement.

Parenting Plan

The Court has reviewed the submissions of the parties together with the report prepared by FCS. The Court finds good cause and that it is in the best interest of the child, Keyler (DOB: 03/30/2020), to adopt the recommendations of Family Court Services (FCS), as set forth in its report issued on July 9, 2026, as modified by the Court, as follows:

Parental Responsibilities

1. The parents shall share joint legal custody of Jackson. The parents shall share in the responsibility and confer in good faith on matters concerning the child's health, education and welfare. Both parents shall have access to the child's school, medical, mental health, and dental records and the right to consult with professionals who are providing services to the child.
2. The parents shall share joint physical custody of Jackson.

Timeshare schedule

3. For the remainder of the summer, Jackson shall continue on a "2-2-3" schedule with both parents.
4. After the school year starts, if both parents live in southern Marin, then Jackson shall continue on the "2-2-3" schedule. If Ron continues to live in Petaluma, then Jackson shall be with Ron on the following schedule (and with Nika the remainder of the time):
 - Every weekend (except for the 1st weekend of the month) from Friday pick up from school until Monday return to school.
 - Every Wednesday from pick up from school until 6:00 p.m.
5. Any changes to the schedule, or any additional time for Jackson to be with either parent, shall occur as mutually agreed upon by the parents.

Recommendations

6. Both parents shall follow all of the agreements reached below.
7. Nika shall maintain her sobriety and shall continue with any support to help ensure that happens (i.e. AA, therapy, etc.)
8. Jackson shall not be exposed to any verbal or physical abuse.
9. The parents shall engage in peaceful contact only in the presence of Jackson.
10. Neither parent shall make any disparaging comments about the other parent in the presence of Jackson or allow others to do so.
11. Jackson shall continue in therapy at the frequency and duration recommended by his therapist. Both parents shall follow any recommendations made by his therapist.
12. Both parents shall be law-abiding.

ADDITIONAL AGREEMENTS BETWEEN THE PARTIES

Collateral Issues

13. Neither parent shall consume any alcohol while Jackson is in their care.
14. Both parents shall test with Soberlink while Jackson is in their care.
15. Both parents shall take a co-parenting class.
16. Both parents shall take a parenting class that includes positive discipline.
17. Both parents shall follow all recommendations made by CFS.

Child support and attorney fees

The request for child support and attorneys' fees is continued to allow Mother and Father to comply with MCR Fam 7.13. The Court refers Mother to the Legal Self Help Center for compliance with local rules and submitting the correct financial documents. Father also needs to comply with the required financial documents under MCR 7.13.

As authorized by CRC Rule 5.125, the Court will prepare the formal Findings and Order After Hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.